

(4) added, p. 279, § 2, effective August 4. **L. 2003:** (1) amended, p. 2065, § 5, effective May 22. **L. 2012:** (4)(a) amended and (4)(b) repealed, (HB 12-1292), ch. 181, p. 676, § 2, effective May 17. **L. 2013:** (4)(a) amended and (4)(c) and (5) added, (HB 13-1303), ch. 185, p. 683, § 4, effective May 10. **L. 2014:** (1.5) added, (HB 14-1354), ch. 159, p. 553, § 1, effective May 9. **L. 2016:** (4)(a) and IP(5)(a) amended and (4)(c) repealed, (HB 16-1093), ch. 126, p. 358, § 2, effective April 21. **L. 2018:** (5)(c) amended, (SB 18-233), ch. 262, p. 1603, § 1, effective May 29. **L. 2024:** (3.5) added, (SB 24-210), ch. 468, p. 3241, § 1, effective June 6.

Editor's note: This section is similar to former § 1-1-109 as it existed prior to 1992.

Cross references: In 2013, subsection (4)(a) was amended and subsections (4)(c) and (5) were added by the "Voter Access and Modernized Elections Act". For the short title and the legislative declaration, see sections 1 and 2 of chapter 185, Session Laws of Colorado 2013.

1-1-111. Powers and duties of governing boards. (1) In addition to any other duties prescribed by law, the governing board of a political subdivision, other than a county or city and county, entitled to call elections shall have the following duties:

(a) To supervise the conduct of regular and special elections which it is authorized or required to call; and

(b) Where appropriate, to consult and coordinate with the county clerk and recorder of the county in which the political subdivision is located and with the secretary of state in regard to conducting elections and rendering decisions and interpretations under this code.

(2) All powers and authority granted to the governing board of a political subdivision, other than a county or city and county, may be exercised by an election official designated by the board. The governing body may also contract with the county clerk and recorder of the county in which the political subdivision is organized to perform all or part of the required duties in conducting the election.

(3) Elections which are set for the same date by various political subdivisions may be held as coordinated elections if the governing bodies so choose. Political subdivisions are authorized to cooperate and contract with each other to perform any function relating to an election.

Source: **L. 92:** Entire article R&RE, p. 634, § 1, effective January 1, 1993. **L. 93:** (3) amended, p. 1396, § 7, effective July 1. **L. 94:** (2) amended, p. 1150, § 3, effective July 1. **L. 96:** (3) amended, p. 1734, § 6, effective July 1. **L. 2024:** IP(1) and (2) amended, (SB 24-210), ch. 468, p. 3268, § 59, effective June 6.

Cross references: For violation of duty and penalty therefor, see § 1-13-107.

1-1-112. Powers and duties of election commission. (Repealed)

Source: **L. 92:** Entire article R&RE, p. 635, § 1, effective January 1, 1993. **L. 2016:** Entire section repealed, (SB 16-142), ch. 173, p. 593, § 82, effective May 18.

Editor's note: This section is similar to former § 1-1-110 as it existed prior to 1992.

1-1-113. Neglect of duty and wrongful acts - procedures for adjudication of controversies - review by supreme court. (1) When any controversy arises between any official charged with any duty or function under this code and any candidate, or any officers or representatives of a political party, or any persons who have made nominations or when any eligible elector files a verified petition in a district court of competent jurisdiction alleging that a person charged with a duty under this code has committed or is about to commit a breach or neglect of duty or other wrongful act, after notice to the official which includes an opportunity to be heard, upon a finding of good cause, the district court shall issue an order requiring substantial compliance with the provisions of this code. The order shall require the person charged to forthwith perform the duty or to desist from the wrongful act or to forthwith show cause why the order should not be obeyed. The burden of proof is on the petitioner.

(2) Repealed.

(3) The proceedings may be reviewed and finally adjudicated by the supreme court of this state, if either party makes application to the supreme court within three days after the district court proceedings are terminated, unless the supreme court, in its discretion, declines jurisdiction of the case. If the supreme court declines to review the proceedings, the decision of the district court shall be final and not subject to further appellate review.

(4) Except as otherwise provided in this part 1, the procedure specified in this section shall be the exclusive method for the adjudication of controversies arising from a breach or neglect of duty or other wrongful act that occurs prior to the day of an election.

(5) Notwithstanding any other provision of law, the procedures specified in section 1-1.5-105 shall constitute the exclusive administrative remedy for a complaint arising under Title III of the federal "Help America Vote Act of 2002", Pub.L. 107-252.

Source: **L. 92:** Entire article R&RE, p. 635, § 1, effective January 1, 1993. **L. 93:** (1) amended, p. 1396, § 8, effective July 1. **L. 94:** (2) amended and (4) added, p. 1151, § 4, effective July 1. **L. 2003:** (5) added, p. 2065, § 6, effective May 22. **L. 2007:** (3) amended, p. 1968, § 3, effective August 3. **L. 2010:** (2) repealed, (HB 10-1291), ch. 325, p. 1506, § 2, effective July 1.

Editor's note: This section is similar to former § 1-1-111 as it existed prior to 1992.

Cross references: (1) For violation of duty and penalty therefor, see § 1-13-107.

(2) For the "Help America Vote Act of 2002", see Pub.L. 107-252, codified at 42 U.S.C. sec. 15301 et seq.

1-1-114. Registration deadline. (Repealed)

Source: **L. 92:** Entire article R&RE, p. 635, § 1, effective January 1, 1993. **L. 93:** Entire section amended, p. 1396, § 9, effective July 1. **L. 94:** Entire section amended, p. 1751, § 3, effective January 1, 1995. **L. 95:** Entire section amended, p. 820, § 4, effective July 1. **L. 96:** Entire section repealed, p. 1775, § 84, effective July 1.

Editor's note: This section was relocated to § 1-2-201 (3) in 1996.

1-1-115. Colorado voter access and modernized elections commission - creation - composition - terms - duties - report - definition - repeal. (Repealed)

Source: L. 2013: Entire section added, (HB 13-1303), ch. 185, p. 684, § 5, effective May 10. L. 2014: (3)(b)(III) amended, (SB 14-153), ch. 390, p. 1960, § 2, effective June 6.

Editor's note: Subsection (8) provided for the repeal of this section, effective July 1, 2015. (See L. 2013, p. 684.)

1-1-116. Access to precinct caucus - party assembly. (1) The general assembly, the secretary of state, and each political party shall ensure that the caucus process or any future alternative process by which candidates may access the ballot that is accessible to persons with disabilities remains an option in the state.

(2) (a) Notwithstanding any provision to the contrary, within six months of August 7, 2024, any person, upon request, must be able to participate in a precinct caucus or a party assembly with the use of a video conferencing platform. The political party holding the caucus or assembly must allow participation with the use of a video conferencing platform without requiring or requesting an explanation of the need for the use of the video conferencing platform. It is in a political party's discretion to determine which video conferencing platform will be used for precinct caucuses and party assemblies so long as the platform is accessible to persons with disabilities. Each political party shall establish policies regarding the procedure and timeline for a person to request to participate in a precinct caucus or a party assembly with the use of a video conferencing platform.

(b) The requirements of subsection (2)(a) of this section do not apply when a precinct caucus or party assembly occurs in a geographic location that is in an unserved area of the state, as defined in section 40-15-102 (32).

(c) A political party holding a precinct caucus or party assembly that is exempt pursuant to subsection (2)(b) of this section from the requirements of subsection (2)(a) of this section must allow participation with the use of an alternative to a video conferencing platform, such as a telephone conference call. The alternative means of participation used by a political party in accordance with this subsection (2)(c) must be accessible to persons with disabilities.

(d) A political party may require that a person request to participate in a precinct caucus or a party assembly with the use of a video conferencing platform, or an alternative to a video conferencing platform as provided in subsection (2)(c) of this section, not more than thirty days in advance of the precinct caucus or party assembly.

(3) The failure of any political party to make a reasonable effort to comply with the requirements of this section constitutes discrimination on the basis of disability in violation of section 24-34-802. Any person who is subjected to a violation of this section is entitled to seek all relief provided in section 24-34-802.

(4) Any action taken pursuant to this section does not limit or preclude a person from securing or recovering any other available remedy including any remedy provided by the federal "Americans with Disabilities Act of 1990", 42 U.S.C. sec. 12101 et seq., as amended, and the Colorado anti-discrimination act, parts 3 through 8 of article 34 of title 24.